



CHIEF JUSTICE
SUPREME COURT OF LIBERIA



JUDICIAL BRANCH
TEMPLE OF JUSTICE
MONROVIA, LIBERIA

BEFORE THE HONORABLE SUPREME COURT OF REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM, A.D. 2019

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOHASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE.....ASSOCIATE JUSTICE

Ernest E. Dennis of the City of Paynesville, Montserrado
County, Republic of Liberia.....Informant)

versus)
His Honor J. Boima Kontoe, assigned Judge, sixth)
Judicial Circuit, Civil Law Court, Montserrado County,)
Republic of Liberia, the Sheriff and his Deputy and)
Bailiffs of the Sixth Judicial Circuit Court, Montserrado,)
Republic of Liberia.....Respondents)

MOTION TO DISMISS

GROWING OUT OF THE CASE:

Percy Williams by and thru His Attorney-In-Fact,
Ayo Williams of the City of Monrovia, Republic of
Liberia.....Petitioner)

versus)
Mary F. Kpoto of the City of Monrovia, Republic)
of Liberia.....Respondents)

APPEAL

GROWING OUT OF THE CASE:

The Intestate Estate of Keikera B. Kpoto, Sr.
Represented by Keikura B. Kpoto Jr., Jarwellie Kpoto
Togba and Zinna Kpoto all of the City of Monrovia,
Republic of Liberia.....Plaintiff)

Versus)
H. Ayo Williams and Madam Kadiatu Kasser, Administrators, for)
Percy Williams, All of the City of Paynesville, Montserrado County,)
Liberia.....Defendants)

JUDGMENT WITHOUT OPINION

When this case was called for hearing, Counsellor Tiawon S. Gongice of Gongice and Associates, Inc.
appeared for the informant. No counsel appeared for the respondents.

The Court observed from the records that during the October 2018 Term, the Informant, Ernest E. Dennis, by and through his Counsel, the Gongloe & Associates, Inc. represented by Counsellor Tiawon S. Gongloe, requested the Court to abate these proceedings for reason that the parties have no issue in dispute anymore; that a third party had purchased the disputed property and compensated both the informant and Co-Respondent Mary Kpoto; whereupon this Court gave the parties one week to file a joint stipulation of voluntary withdrawal of the bill of information filed by the informant so that this matter could be stricken from the Docket of this Court in accordance with the Rules of the Supreme Court.

Accordingly, on October 23, 2018, the counsels representing the parties filed a joint stipulation for voluntary discontinuance with the Clerk of the Supreme Court which reads as follows:

" Dear Mr. Clerk:

NOTICE OF STIPULATION FOR VOLUNTARY DISCONTINUANCE

Upon receipt of this communication, you will please spread upon the records of this Honorable Court that the counsels of records for both parties (Plaintiff & Defendants) in the above captioned case, in keeping with Section 11.6 (1)(b) of 1LCLR, page 121, hereby sign and file this Stipulation of Notice of Voluntary Discontinuance as follows; to wit:

1. That counsels for Informant have offered to discontinue the above captioned cause of action based on instructions from their clients.
2. That the withdrawal by the Informants of this case is without prejudice.
3. That counsel for respondents has accepted and agreed to said offer of discontinuance without prejudice to either party in this case.

Now therefore, counsels for the parties have agreed to discontinue the hereinabove-captioned case and do hereby respectfully request this Honorable Court to approve the said stipulation and have the above mentioned Bill of Information stricken.

FOR INFORMANT:

Signed: _____
Momolu G. Kandakai
Counsellor-At-Law

Signed: _____
Tiawan S. Gongloe
Counsellor-At-Law

FOR RESPONDENT:

Signed: _____
Albert Sims
Counsellor-At-Law

Signed: _____
Richard Flomo
Counsellor-At-Law

Dated this 23rd day of October 2018

Approved: _____
Jamesetta H. Wolokolie
Associate Justice
Supreme Court of Liberia"

Having carefully perused the joint stipulation of voluntary withdrawal filed by the parties and approved by our Colleague, Madam Justice Jamesetta H. Wolokolie, and being satisfied that it is in accordance with the Rules of the Supreme Court, it is hereby

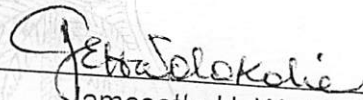
ADJUDGED:

That the Joint Notice of Voluntary Discontinuance filed by the parties through their respective counsels is hereby granted and the Bill of Information filed by the informant accordingly ordered stricken from the Docket of this Court. Costs are ruled against the informant. AND IT IS HEREBY SO ORDERED.

GIVEN UNDER OUR HANDS AND THE SEAL OF THE
SUPREME COURT OF LIBERIA THIS 5th DAY OF AUGUST
A.D. 2019



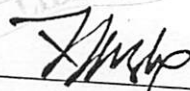
Francis S. Korkpor, Sr.
CHIEF JUSTICE, SUPREME COURT OF LIBERIA



Jamesetta H. Wolokolie
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA



Sie-A-Nyene G. Yuoh
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA



Joseph N. Nagbe
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

Note: Mr. Justice Yussif D. Kaba not having ascended to the Supreme Court Bench at the time this case was heard, he did not participate in its hearing and determination. Hence, he did not sign this judgment